

Tentative Rulings for August 11, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG04448 *Pismo's of Fresno, LLC v. Villagio Shopping Center, LLC* is continued to Wednesday, September 9, 2026, at 3:30 p.m. in Department 403.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 403

Begin at the next page

(03)

Tentative Ruling

Re: **Frank Cruz v. Mortgage Default Services, LLC**
Court Case No. 24CECG03048

Hearing Date: August 11, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Reconsideration of Summary Judgment

Tentative Ruling:

To deny plaintiff's motion for reconsideration of the court's order granting summary judgment. (Code Civ. Proc., §§ 1008, subd. (b); 473, subd. (b).)

**If oral argument is timely requested, it will be entertained on
Thursday, August 13, 2026, at 3:30 p.m. in Department 403.**

Explanation:

First, the court has already entered a judgment based on the order granting summary judgment, so it no longer has jurisdiction to grant reconsideration of its order. (*Ramon v. Aerospace Corp.* (1996) 50 Cal.App.4th 1233, 1237–1238 [holding trial court had no jurisdiction to rule on the motion for reconsideration once it granted a final judgment in the case.]) The court entered the judgment in favor of defendant Labbett on February 10, 2026. Plaintiff did not file his motion for reconsideration until February 13, 2026, three days after the judgment was entered. Therefore, the court lost jurisdiction to grant reconsideration before the motion for reconsideration was filed, and the court has no authority to grant reconsideration now.

In addition, plaintiff filed a notice of appeal of the judgment on July 10, 2026, which had the effect of depriving the trial court of jurisdiction to hear the motion for reconsideration. (*Vallejo v. Superior Court of Santa Clara County* (2021) 73 Cal.App.5th 132, 144.) As a result, the court cannot grant the relief that plaintiff seeks, as it has lost jurisdiction to reconsider the matter after the filing of the judgment, as well as the appeal of the judgment. Consequently, the court intends to deny the motion for reconsideration.

Even if the court did have jurisdiction to grant relief, plaintiff has failed to show any new facts, circumstances, or law that would justify reconsideration of the order. Under Code of Civil Procedure section 1008, subdivision (a), a party moving for reconsideration of a court order must show that there are “new or different facts, circumstances, or law” that justify reconsideration of the order. (Code Civ. Proc. § 1008, subd. (a).) Failure to submit an affidavit that complies with the requirements of section 1008(a) renders the motion invalid and deprives the court of jurisdiction to hear the motion. (*Branner v. Regents of University of California* (2009) 175 Cal.App.4th 1043, 1048.)

Also, “[a] party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time.” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212, internal citations omitted.) The requirement that the moving party explain why the new facts were not presented sooner

"can only be described as a strict requirement of diligence." (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690, citation omitted.) The requirements of section 1008 are "expressly jurisdictional." (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839–840.) Thus, failure to comply with the requirement of demonstrating new facts, circumstances, or law requires denial of a motion for reconsideration. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1104.)

Here, plaintiff moves for reconsideration because he claims that he was too ill to oppose the defendant's summary judgment motion. However, the fact that plaintiff was ill in the weeks prior to the summary judgment hearing does not constitute the type of "new facts or circumstances" that warrant reconsideration. Plaintiff was clearly aware of his illness at the time the summary judgment motion was pending, so his illness was not a "new fact" for the purpose of reconsideration. Rather, it was a fact that was in plaintiff's knowledge well before the hearing on the summary judgment motion. He has not explained why he did not attempt to obtain a continuance of the hearing from the court before the court heard the matter, or why he did not even notify the court of his health problems. If he had done so, the court would likely have granted a continuance of the motion until he had recovered enough to file opposition. Now that the court has already heard and granted the motion for summary judgment, as well as entering judgment based on the order, plaintiff's belated assertion that he was too sick to file opposition is not a valid reason to reconsider the court's order. Therefore, plaintiff has not met his burden of showing that there are new facts, circumstances, or law that justify reconsideration, nor has he given a satisfactory explanation for his failure to present the new facts earlier. As a result, the court intends to deny the motion for reconsideration.

Likewise, plaintiff has not shown that he is entitled to relief under Code of Civil Procedure section 473, subdivision (b). Section 473(b) states that, "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).)

"To warrant discretionary relief here, the proffered evidence must show that the attorney's error was excusable. Neglect is excusable only if a reasonably prudent person in similar circumstances might have made the same error. Relevant factors in assessing counsel error include: '(1) the nature of the mistake or neglect; and (2) whether counsel was otherwise diligent in investigating and pursuing the claim.' 'Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable.' 'To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.'" (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423, citations omitted.)

In addition, the fact that plaintiff here is self-represented does not mean that he is exempt from the requirements of section 473(b). "[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation... A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–985, citation omitted.)

(48)

Tentative Ruling

Re: ***Minor v. Nazarian, M.D. et al.***
Superior Court Case No. 25CECG02427

Hearing Date: August 11, 2026 (Dept. 403)

Motion: By Defendant Arbi Nazarian, M.D. for an Order to Compel Initial Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages; Request for Monetary Sanctions

Tentative Ruling:

To grant defendant Arbi Nazarian, M.D.'s motion to compel plaintiff Kathy G. Minor to provide verified responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) Plaintiff Kathy G. Minor is ordered to serve complete verified responses to the discovery set forth above, without objections, within 20 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of defendant Arbi Nazarian, M.D. and against plaintiff Kathy G. Minor. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Plaintiff Kathy G. Minor is ordered to pay \$900.00 in total sanctions to Salinas Law Group within 30 days of the clerk's service of the minute order.

**If oral argument is timely requested, it will be entertained on
Thursday, August 13, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Where a party fails to serve a timely response to interrogatories or demand for inspection, copying, testing, or sampling, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) A party that fails to serve a timely response to interrogatories or an inspection demand waives any objection to the request. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

In the case at bench, on April 6, 2026, defendant Arbi Nazarian, M.D. ("Defendant") served Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages on plaintiff Kathy G. Minor ("Plaintiff") by electronic service. Plaintiff was required to respond by May 8, 2026. Plaintiff failed to serve verified responses. Therefore, Defendant is entitled to an order compelling Plaintiffs to respond to the discovery at issue. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) All objections are waived. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Sanctions

If the party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

Counsel for Defendant submits that their hourly rate is \$220.00 per hour. The court approves the hourly rates as reasonable. Plaintiff seeks imposition of 3 hours for legal research and preparation of the motions considered, and an additional fee for an appearance at a possible hearing. The court imposes sanctions in the reduced amount of \$900.00, inclusive of the \$240.00 in filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 10, 2026.
(Judge's initials) (Date)